

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN JAMAICA

Complete Community Opposition How-To

This guide uses the terms and bodies you'll actually run into in Jamaica — the protected area and its status, the environmental permit and the EIA, NEPA and the NRCA, the demand for transparency, the courts, Maroon and community land claims — and explains each in plain words the first time.

INTRODUCTION & FRAMEWORK

In 2013 the government announced that a Chinese state company would build a vast transshipment port and logistics hub — a project of around **one and a half billion US dollars** — on the **Goat Islands**, two islands inside the **Portland Bight Protected Area**, Jamaica's largest protected area and its greatest mangrove system, a haven for endemic birds, the fish that feed the coast, and the last refuge nearby of the critically endangered Jamaican iguana. The deal had been struck largely in secret; environmental stakeholders learned of it from the newspapers. But a coalition rose to fight it — the **Jamaica Environment Trust**, the "Save Goat Islands" campaign, scientists, birders, fishers, and ordinary Jamaicans — attacking the secrecy, documenting exactly what would be lost, rallying the fishers whose grounds were at stake, and drawing in conservationists worldwide. By 2016 the government announced the Goat Islands were no longer being considered. The country's largest protected area was saved.

The Jamaica Environment Trust and the Save Goat Islands coalition drew on tools available to communities across Jamaica, in an open democracy. A large project needs an **environmental permit** and, usually, an **EIA** from **NEPA** (the National Environment and Planning Agency, acting for the **Natural Resources Conservation Authority**), with public comment. **Protected-area status** changes the legal terrain of a fight. The **courts** (including judicial review) are open; protest, petition, and litigation are lawful. Access-to-information and the demand for **transparency** are real levers — the secrecy of the Goat Islands deal was itself a target. And **Maroon and community land claims** carry weight. But these tools have real limits, and this guide states them plainly. The Goat Islands win was genuine, yet the government **moved the port plan elsewhere** rather than abandoning such ambitions — vigilance remained. And Jamaica's other great fight, over the **Cockpit Country** — the rugged, Maroon, water-giving heart of the island threatened by **bauxite mining** — has been only a **partial, contested win**: the 2017 protected boundary was drawn **smaller than the science demanded**, leaving out key cultural sites and much of the aquifer, and setting no buffer, so mining presses at the edges. So aim for what these tools can deliver, and keep watch, because the state treats bauxite and big development as central to the economy.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Jamaican project needs its **environmental permit** and a sound **EIA**; if it sits in a **protected area**, it must overcome that status; it can be challenged in the **courts**; and it depends on **secrecy** and public acquiescence you can strip away. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's inside or beside a protected area, that status is your sharpest legal lever** — the project starts from behind, not neutral, as at Goat Islands.
- **If the EIA or permit is defective, or the deal was done in secret, the courts and the transparency demand genuinely bite.**
- **If Maroon or community land is engaged, those claims carry real weight.**
- **If the state treats it as economic priority (like bauxite), expect a partial, contested outcome** — aim for a protected core, a quashed permit, delay, and exposure, and keep watch.

Read the whole guide once before you move. Two habits run through it: **use the tools of an open democracy** — protected-area law, the EIA, the courts, transparency, public opinion — and **bind expert advocacy to a rooted, wide public** — the Goat Islands template. That's how the port was stopped.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental permit** (and, for significant projects, approval of an **EIA**), issued by **NEPA** on behalf of the **NRCA**, with a public-comment stage. Planning permissions come from the local authority and, for large projects, national bodies. **Protected-area status** (like the Portland Bight Protected Area) constrains what may be permitted. And above sit the **courts**, which review the legality of permits and decisions. Maroon and community land rights add a further layer. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The EIA and public comment. A significant project prepares an EIA; there's a public-comment stage. *Your opening — and it arms every later step:* comment, put your objections on the record, and attack the EIA's flaws.

The permit. NEPA/NRCA grants or refuses. *Your opening:* a permit on a defective EIA, or one inside a protected area, is vulnerable to judicial review.

Construction and operation. *Your opening:* breaches of the permit, harm to the protected area — challengeable in court.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including any foreign government or company, whose reputation you can reach. **What it still needs** — the permit not granted or under challenge, the EIA not approved, the secrecy not yet broken: whatever's missing is the soft spot. **What protected status and land it touches** — because that status, and Maroon/community claims, are your hardest levers.

Who's Supposed to Be Watching

Each is an ally or an arena. **NEPA and the NRCA** grant and oversee the permit. **Protected-area status** is a legal shield. The **courts** review permits and decisions. The **Access to Information** regime forces out the secret deal. And Jamaica's **environmental organisations (like the Jamaica Environment Trust)**, its

scientists, its Maroon and coastal communities, and a free press are the forces that reach furthest — the coalition that saved Goat Islands.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a protected area or Maroon/community land is engaged, whether the EIA or permit is defective or the deal secret, and how central the state thinks the project is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Comment / objections in the EIA	15–35%	during EIA	low	On record; conditions or a redo
Break the secrecy (Access to Information)	20–45%	weeks–months	low	The deal exposed; public turns
Protected-area status lever	35–60%	varies	low–mod	Project starts from behind; often barred
Judicial review (permit / EIA)	30–55%	months–2 yr	mod	Permit quashed; process ordered
Maroon / community land claim	25–50%	varies	low	Project stalled on claimed land
Coalition + national attention	30–55%	months–yr	low	Project dropped; plan moved
Everything together (protected area, secret deal, organised)	40–65%	1–3 yr	mod	Stopped, quashed, held, delayed
Everything together (economic-priority project)	20–45%	1–3 yr	mod	Partial protection; delay; exposure

The levers that move the needle most are **protected-area status**, **judicial review**, and **breaking the secrecy**, bound to a broad coalition and the nation's attention. Goat Islands shows the ceiling (a \$1.5bn port dropped); Cockpit Country shows the honest floor (a protected core won, not the whole). So aim for a project stopped, a permit quashed, a protected area held, delay, and exposure — and keep watch.

On cost: commenting, Access-to-Information requests, and organising are cheap; and Jamaica's environmental organisations bring the legal expertise. The Goat Islands template is expert advocacy bound to a rooted, wide public — the combination, not any single tactic, is what wins.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this protected area, this defective EIA, this secret deal — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, any foreign government, and the financiers whose reputation you can reach.

2. Where is it, and what does it touch? Map it over **protected areas**, mangroves, reefs, water, **Maroon and community land**, and fishing grounds. **A protected area, and Maroon/community land, are your sharpest levers** — Goat Islands sat inside Jamaica's largest protected area.

3. What stage is it at, and what's the next deadline? Is an EIA in public comment? Has the permit issued (opening judicial review)? Was the deal secret (opening the transparency demand)? These openings are time-bound.

4. What does it still need that it lacks? The permit not final, the EIA not approved, the secrecy not broken. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring and coastal communities, fishers, Maroon communities, environmental organisations, scientists. Goat Islands bound experts to fishers to the world.

What this looks like in real life. A community learns a port or mine, backed by a foreign company, threatens a protected area or Maroon land, on a deal done in secret. The five questions yield: a company and foreign backer; a protected area and Maroon land at stake (the levers); an EIA due or a permit granted; secrecy to break; and a coalition of communities, experts, and the public. That's the Goat Islands pattern — use the protected-area status, break the secrecy, and build the coalition.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA, the environmental permit and conditions, the protected-area boundaries and status, any land records, the deal itself (use **Access to Information** to break the secrecy). Then read the EIA hard for flaws — an understated impact on mangroves, reefs, or endemic species, an ignored alternative, a protected area brushed over.

Layer two: the ground truth. Dated, located photographs and video of the coast, mangroves, reefs, water, and land — baseline images before any damage most of all — and the testimony of affected fishers and residents. Marshal the **science** on what would be lost, as Goat Islands did.

Layer three: the map of protection and harm. Lay the project over the protected area, mangroves, Maroon and community land, and fishing grounds, so the protected status and the harm are undeniable. Walking into NEPA, the courts, or the press with the EIA, the science, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the permit and conditions, the protected-area boundaries, the deal** — from NEPA; break the secrecy with an Access to Information request (8A).
- **Land records** — Maroon and community claims to the land.
- **Ownership and financing** — the company and any foreign government.
- **The protection-and-harm map** — protected area, mangroves, reefs, and land, laid over the project.
- **Dated site evidence, science, and named testimony** — photographs marked with date and place, expert findings, and fishers' and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a coalition that binds expertise to a rooted public gives you power — the Goat Islands template. Build in four moves.

Start with a tight core. The communities and fishers most affected, the people who know the coast and land, a few tireless organisers, and respected local figures.

Bind experts to a wide base. Goat Islands worked because established environmental organisations that knew the law and the agencies stood at the centre, with scientists who could say exactly what would be lost, the fishers who lived off the waters, and an international network around the endemic species. Reach the Jamaica Environment Trust and its peers; gather the scientists; rally the fishers and the public.

Centre Maroon and community claims where they apply. Where Maroon or community land is engaged, those claims carry real legal and moral weight; build the campaign around supporting that leadership, at their direction.

Build to last. Jamaican fights run for years, especially against economic-priority projects. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and, if direct action is contemplated, get legal advice first.

STEP 4: LEGAL CHALLENGES, PROTECTED AREAS & TRANSPARENCY

Law is one of Jamaica's sharpest levers, because protected-area status and judicial review give a community solid ground.

Comment First, and Break the Secrecy

Take part in the **EIA public comment** and put your objections on the record — it arms every later court case. And where the deal was done in secret, use the **Access to Information** regime to force it into the open; exposing a secret deal, as at Goat Islands, turns the public and strips the project's cover.

Protected-Area Status and Judicial Review

A project inside or beside a **protected area** starts from behind: it must overcome a status the law has already granted the land. That status is a concrete legal ground — and a permit granted despite it, or on a defective **EIA**, can be challenged by **judicial review** in the courts, which can quash the permit or order the process redone. This is your sharpest legal combination.

Maroon and Community Land

Where **Maroon or community land** is engaged, those land claims — rooted in history and, for the Maroons, in longstanding rights — are a real lever to stall or block a project, exercised at those communities' direction.

The Honest Limits

Straight talk: protected-area law and the courts are powerful, but the state treats bauxite and big development as central, so outcomes can be partial (Cockpit Country) and plans can be moved rather than abandoned (Goat Islands). So use the strong tools — the EIA, the transparency demand, protected-area status, judicial review, Maroon claims — pair them with the coalition and the nation's attention, keep watch, and count a project stopped, a permit quashed, a protected core held, delay, and exposure as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Protected status becomes a legal bar. Not "we oppose the port" but *"this sits inside Jamaica's protected area, and the law already protects it — the permit cannot lawfully stand."*

Secrecy becomes a scandal. *"This deal was done behind the country's back — the public has a right to know, and to say no."*

A defective EIA becomes a judicial review. *"The EIA understated the harm to our mangroves and endemic species — the permit is unlawful."*

The harm becomes a national story. *"Jamaica's greatest mangrove, the last refuge of our iguana, the fishers' grounds — bulldozed for a foreign port."*

Match it to the venue: the objections to NEPA; the secrecy to Access to Information and the press; the protected status and defective permit to judicial review; the Maroon land to those communities and the courts; the national story to the press.

STEP 5: MEDIA STRATEGY

In Jamaica, the nation's attention is a decisive lever — Goat Islands became a national cause — and international conservation attention reaches a foreign backer. A free press and strong environmental organisations make the media front central.

Lead with the coast, the species, and the people, not procedure. Not "the EIA was deficient" but "Jamaica's greatest mangrove and the last refuge of our iguana, bulldozed for a foreign port, on a deal done in secret." Use your strongest material: dated photographs, the science, the map, fishers' voices, and any court action banked.

Work several audiences at once. Local and national press build the national cause; international conservation networks reach the endemic-species story and the foreign backer; the transparency angle drives headlines. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action, and let the coalition shape the story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Access to Information request (to NEPA / the ministry).

Subject: Access to Information request — [project].

"Under the Access to Information Act, we, residents of [place], request the EIA, the environmental permit and conditions, the protected-area boundaries, and the agreement for [project] at [location]. [Contact.]"

8B — Objection in the EIA public comment.

Subject: Objection — EIA for [project].

"We, residents of [place], object to [project]: [it sits in a protected area; the EIA understates the harm to our mangroves and species]. We ask that the permit be refused. [Attach evidence.]"

8C — To NEPA / the NRCA.

Subject: Concerns re the permit for [project].

"We, residents of [place], ask that the permit for [project] be refused or conditioned: [it damages the protected area; the EIA is defective]. [Attach evidence.]"

8D — To an environmental organisation / lawyer.

Subject: Possible judicial review — [project].

"Our community faces [project] inside [the protected area], on [a defective EIA / a secret deal]. We've gathered [the EIA, the science, photographs]. We ask for your help to challenge the permit by judicial review, as at Goat Islands. [Contact and evidence summary.]"

8E — To the Maroon / community authorities.

Subject: Our land and [project].

"[Project] affects our [Maroon / community] land at [location]. As [the community / its authorities], we assert our rights and ask to stand together against it. [Attach evidence.]"

8F — To a foreign government or company.

Subject: Environmental, legal, and reputational risk in [project].

"We are the community affected by [project] at [location], backed by your [government / company]. It destroys a protected area and endemic species and faces legal challenge. As with Goat Islands, this carries real reputational risk. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [the coast / Cockpit Country] from [project].

"For generations the people of [place] have lived from [these waters / this land]. Now [project] threatens [our mangroves / our water / our endemic species]. We can provide photographs, the science, a map and interviews. [Contact.]"

8H — Rallying the coalition.

Subject: We can protect our coast — here's how.

"[Project] threatens [our protected area / our land]. At Goat Islands, a coalition of scientists, fishers, and citizens stopped a \$1.5bn foreign port. With protected-area law, the courts, the transparency demand, and the nation behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and the protected area or Maroon/community land it touches.** That's your sharpest lever.
2. **Break the secrecy with an Access to Information request (8A), and object in the EIA (8B).**
3. **Marshal the science on what would be lost, and read the EIA for flaws.**
4. **Photograph everything, with dates and places.**
5. **Reach an environmental organisation and a lawyer (8D), and prepare a judicial review.**
6. **Bind experts to a wide public and go national (8G/8H).**

Even lean, those six use the protected-area status, the transparency demand, the courts, and the Goat Islands coalition template.

WHEN THE SYSTEM IS TILTED

Jamaica's tools are real, but the field can be tilted, and you must plan for it.

When the state treats it as economic priority. Bauxite and big development get state backing. Don't fold: use the protected-area, court, and transparency levers, build the coalition, and aim for a protected core, delay, and a moved or dropped plan — and keep watch.

When the win is only partial. Cockpit Country's boundary was drawn too small. Keep pressing for a fuller protection and a buffer; a partial win can be widened.

When the plan is just moved. Goat Islands' port was relocated, not abandoned. Stay vigilant, and support whichever community is next in line.

When the deal is secret. Use Access to Information to break it; a secret deal exposed turns the public.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Jamaica has real concerns about secretive deals and the closeness of powerful interests to big projects, so this matters.

How to spot it. Permits against the evidence or inside a protected area; deals done in secret; an EIA written for the proponent; benefits to the connected while communities bear the harm.

Who's supposed to guard against it. The **Auditor General** and the **Integrity Commission** examine public money and conduct. The **courts** can quash a tainted permit. The **Access to Information** regime forces out the secret deal. And Jamaica's **press and environmental organisations** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, what was hidden, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Auditor General, the Integrity Commission, the courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; the protected status and the secrecy aim it; a coalition of experts and public is the muscle; the EIA, the transparency demand, and the courts press the case; the media raises the cost and rallies the nation. Together they multiply. One at a time, they stall — and keep watch after a win.

Early on (weeks 1–8): nail down the project and the protected area or Maroon land; break the secrecy with Access to Information; object in the EIA; marshal the science; photograph the baseline; build a coalition and reach an organisation and a lawyer.

In the thick of it (months–years): bring a judicial review of a defective permit; assert Maroon/community claims; open the media front, national and international.

The long haul (years): carry the litigation; keep the coalition and the attention alive; hold the line for a project stopped, a permit quashed, a protected core held, delay — and keep watch for a moved plan or a narrowed boundary.

FINAL ASSESSMENT

Stopping a destructive project in Jamaica can be done — a coalition of scientists, fishers, and citizens stopped a \$1.5bn foreign port and saved the island's largest protected area. Hold both truths. Jamaica's tools are strong: an environmental-permit and EIA system with public comment; protected-area status that shifts the legal terrain; open courts and judicial review; an Access to Information regime that breaks secret deals; and Maroon and community land claims. And the constraints are real: a state that treats bauxite and big development as central, partial wins like Cockpit Country, and plans that move rather than die.

Here's the discipline that wins. Use the tools of an open democracy: break the secrecy with Access to Information, marshal the science on what would be lost, and lean on protected-area status, which makes the project start from behind. Take part in the EIA, and challenge a defective permit by judicial review. Bind expert advocacy to a rooted, wide public — the Goat Islands template — assert Maroon and community claims where they apply, and carry the fight to the nation and the world. Keep watch, because a plan can move and a boundary can be drawn too small. Count a project stopped, a permit quashed, a protected core held, delay, and exposure as wins. That's what Goat Islands did — the experts, the fishers, the science, and the nation together. So can you.